

It is Plaintiff's burden to provide a defense to the arbitration agreement by a preponderance of the evidence. Here, Plaintiff does not carry her burden regarding assent. Without evidence otherwise, as it is plain on its face that the document Plaintiff was signing was an arbitration agreement, which terms are apparent, she is deemed to assent to all its terms.

Plaintiff also challenges the arbitration agreement as unconscionable. Here, there are some aspects of procedural unconscionability. The arguments regarding Plaintiff's primary language, which are addressed above, support a finding that there are some aspects of procedural unconscionability. As does the fact that the arbitration agreement may be viewed as a contract of adhesion.

However, a finding of procedural unconscionability "does not mean that the contract will not be enforced, but rather that the courts will scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided." (*Baltazar v. Forever 21, Inc.*, (2016) 62. Cal.4th 1237, 1244.) In other words, because procedural unconscionability has been found, the analysis turns on consideration of the substantive unconscionability prong. The substantive inquiry considers whether the overall bargain is overly harsh or unreasonably one sided. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.)

Here, the terms of the arbitration agreement are not so harsh, unreasonable, or unfairly one sided as to render the agreement unconscionable. The arbitration agreement has the requisite modicum of bilaterality, is limited to Plaintiff's employment with Defendant, provides for a neutral arbitrator that must follow the law, provides adequate discovery, provides types of relief otherwise available in this court, and Defendant is to pay for costs unique to arbitration. The fact that the arbitration agreement contains a class, collective, or other representative action waiver does not render the arbitration agreement unconscionable.

This action is stayed pending arbitration.

An arbitration status hearing is set for Thursday, January 14, 2027, at 8:15 a.m. in Courtroom 8.

The court will sign the order lodged with the court on June 22, 2026.

26CV-00869

Javier Alvarado vs Central Valley Opportunity Center, Incorporated

Motion to Compel Defendant Central Valley Opportunity Center Incorporated's Response to Plaintiff's Special Interrogatory, Set One, No. 1, and Request for Monetary Sanctions Against Defendant in the Amount Of \$4,110.00

The motion to compel a response to Special Interrogatory, Set One, No. 1, is DENIED as premature

Exhibit C, attached to the Declaration of Young, establishes that Defendant had until June 5, 2026, to provide discovery responses. (Young Decl., ¶ 5, Exhibit C, p. 3.) Plaintiff filed their motion on June 4, 2026. As this is prior to the June 5, 2026, due date, Plaintiff's

motion is premature. If Defendant served responses on June 5, 2026, which is alleged in Defendant's opposition, the responses would be timely, and this motion would be unnecessary.

Accordingly, the motion is denied.

Motion for Judgment on the Pleadings

Continued from July 15, 2026.

The motion for judgment on the pleadings is DENIED.

The request for judicial notice is DENIED as to Exhibits A, B, and E, as the truth or interpretation of the documents are disputed.

The request for judicial notice is GRANTED as to Exhibits C and D, but only as to the existence of the documents and not the truth or interpretation of the contents as they are disputed.

The request for judicial notice of Defendant's and Plaintiff's counsel's website is DENIED as it is not relevant at this stage.

Plaintiff's objections to the Declaration of Bryan B. Miller are OVERRULED.

Plaintiff's objections to the Declaration of Custodian of Records are OVERRULED.

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999; see also *Templo v. State of California* (2018) 24 Cal.App.5th 730, 735 [motion for judgment on the pleadings is equivalent to a demurrer].)

"[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution." (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.)

Defendant contends that the prior class settlement in *Rodriguez v. Central Valley Opportunity Center, Incorporated*, Merced Superior Court Case No. 22CV-01358, bars this action based on res judicata. In support, Defendant requests judicial notice of certain documents, that if the truth or interpretation of the matter asserted therein is accepted, would prove Plaintiff's claims are precluded. Of those documents, the truth and interpretation of the contents of Exhibits A, B, and E are disputed by Plaintiff. Further, the interpretation and legal effect of Exhibits C and D are also disputed by Plaintiff. These are factual disputes that require evidentiary resolution.

This leaves the motion for judgment on the pleadings to challenge the deficiency of the complaint on its face.

Here, accepting Plaintiff's allegations as true, Plaintiff has alleged facts sufficient to constitute each cause of action. Plaintiff alleges he was employed through October 20, 2023. Plaintiff alleges he was a non-exempt employee entitled to wages, overtime, meal

and rest period premiums, unreimbursed expenses, and penalties. Plaintiff alleges Defendant failed to pay all wages, failed to provide compliant meal and rest periods, failed to pay final wages, failed to reimburse business expenses, and engaged in unlawful business practices. As Defendant's evidence rebutting those allegations will not be considered for the motion for judgment on the pleadings as they require evidentiary resolution, those allegations are sufficient at this stage.

Accordingly, Defendant's motion is denied.

26CV-03503 Raquel Comparam vs Priscilla Gonzalez

Order to Show Cause re: Restraining Order

Appearance Required.

26CV-03523 Brittany Objoma vs Rodger Shaw

Order to Show Cause Re: Restraining Order

Appearance Required.

25CV-06713 Juan Xiong et al. vs Mid-Century Insurance Company

Trial Setting Conference

Appearance Required.
